

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Mark A. Mandio
Judge of the Superior Court
County of Riverside
30755-D Auld Road, Ste 1226
Murrieta, CA 92563

Re: Ruiz, Solomon Martin
CDC No.: AR5577
Case No.: SWF1300770
Date of Sentence: 09/27/2013

Dear Honorable Mark A. Mandio:

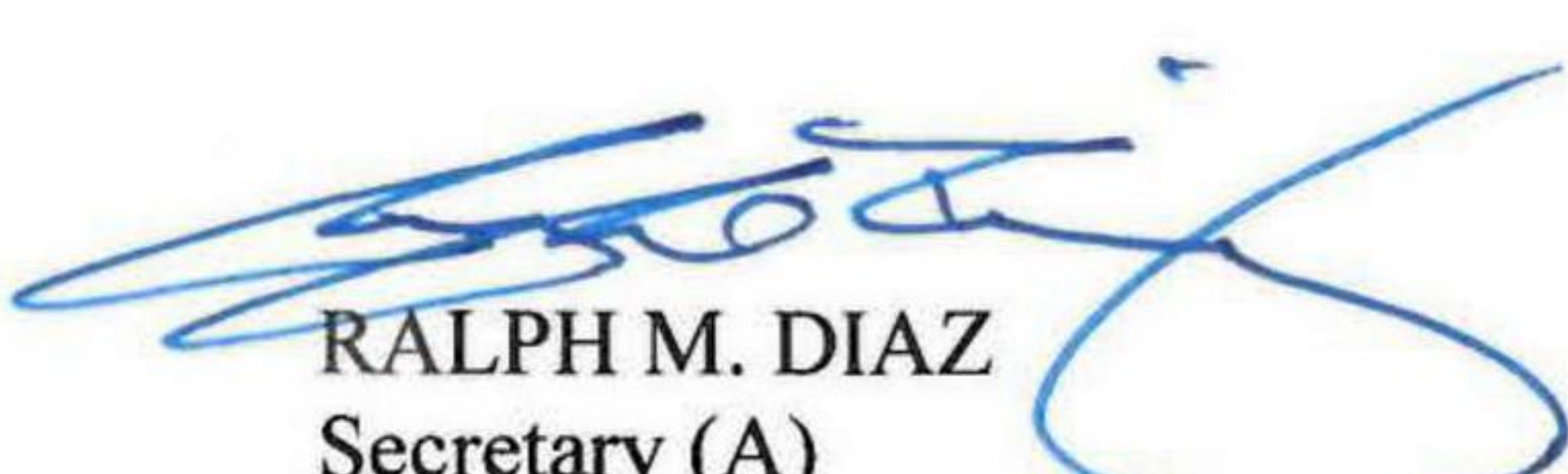
The purpose of this letter is to provide the court with authority to resentence Solomon Martin Ruiz pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Ruiz was sentenced in 2013, and was convicted of section 245, subdivision (A)(4), Assault Likely. The trial court sentenced inmate Ruiz on 09/27/2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Ruiz's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Ruiz's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Becky L. Dugan, Riverside County Presiding Judge
Riverside District Attorney
Private Attorney

AR 5577 (2)
ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

Prop 69 - Court CR-290

Date 10/10/13

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Riverside		Per M. Jones N1520 Riverside Sheriff's Department FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF RIVERSIDE OCT 01 2013 <i>[Signature]</i>	
PEOPLE OF THE STATE OF CALIFORNIA vs. SOLOMON MARTIN RUIZ DEFENDANT: SOLOMON MARTIN RUIZ JR. AKA: SOLOMON MARTIN RUIZ JR. CII#: A26129660 BOOKING #: 200733157		DOB: 04/25/1989 SWF1300770, #2-A -B -C -D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ NOT PRESENT ☐ AMENDED ABSTRACT	
DATE OF HEARING 09/27/2013	DEPT. NO. S302	JUDGE Mark A. Mandio	
CLERK L. HUNTLEY	REPORTER L. IVERS	PROBATION NO. OR PROBATION OFFICER ☒ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE Brandon Smith		COUNSEL FOR DEFENDANT Pvt Darryl Exum ☐ APPTD	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 _____ (number of pages attached)

Additional counts are listed on attachment _____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DAY/YR)	CONVICTED BY			TERM (L,M,J)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2	PC	245(A)(4)	Assault likely :	13	09/04/13			X	M							1	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2	PC 12022.7(b)	05	PC 186.22(B)	01			6

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant was sentenced per ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes)

☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER
	Not Available
Riverside	

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 7 -

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SOLOMON MARTIN RUIZ			
SWF1300770, #2-A	-B	-C	-D

I. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$280.00 per PC 1202.4(b) forthwith per PC 2085.5; \$280.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$40.00 per PC 1465.8.

e. Criminal Conviction Assessment: \$30.00 per GC 70373.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify): **PC 296 (a)**

11. Other orders (specify):

Case to run consecutive to case SWF022015, from Riverside County.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: **Hispanic**

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC1170(d).)
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	205	266	39 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
09-27-13		DMH CDCR CRC	

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☒ other (specify): **RECPT. CTR.**

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

DATE

10-01-13

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE

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